

Movin v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 29 November 2016 · Writ-C No. 55987 of 2016 · **Writ disposed; apply under 2005 Code; licensee to consider in law.**

HEADNOTE

Writ seeking consideration of a new-connection application, or alternatively restoration of an old connection, disposed of on the licensee's statement that a prescribed-format application completing U.P. Electricity Supply Code, 2005 formalities would be processed with expedition. Petitioner directed to apply under the 2005 Code within two weeks; on compliance, the third respondent to consider the application and pass appropriate orders within four weeks. No mandamus to grant or restore supply.

FACTUAL SUMMARY

Movin filed Writ-C No. 55987 of 2016 in the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. and two others. The only prayer was that the respondents consider his application for a new electricity connection or, in the alternative, restore an old connection. Counsel for the contesting respondents stated that if the petitioner applied in the prescribed format and completed all formalities under the U.P. Electricity Supply Code, 2005, the respondents would proceed with expedition and dispose of the application in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::new-connection

application for new connection or restoration

HOLDING

Where the consumer only sought consideration of an application for a new electricity connection or restoration of an old connection, and the licensee stated that a prescribed-format application completing 2005 Code formalities would be disposed of with expedition in accordance with law, the writ was disposed of by directing the consumer to apply under the Code within two weeks and, on such compliance, the third respondent to consider the application and pass appropriate orders within four weeks. No direction to grant or restore supply was issued. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Writ seeking consideration of a new-connection application, or alternatively restoration of an old connection, disposed of on the licensee's statement that a prescribed-format application completing U.P. Electricity Supply Code, 2005 formalities would be processed with expedition.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT ON THE MERITS TO A NEW CONNECTION OR TO RESTORATION OF AN OLD CONNECTION

Disposed solely on the licensee's statement that a complete application under the 2005 Code would be considered in accordance with law. ¶ 1